

1.

CASE #	CASE NAME	HEARING NAME
CVPS2303732	WINSTEAD VS 7-ELEVEN, INC., A TEXAS CORPORATION	MOTION FOR RELIEF FROM DEFAULT PURSUANT TO CODE OF CIVIL PROCEDURE § 473(B) BY ALYSSA WINSTEAD

Tentative Ruling: An application for mandatory relief based on an attorney affidavit of fault must be made “no more than six months after entry of judgment.” (C.C.P. §473(b).) Unlike the excusable neglect provisions, there need be no showing of diligence in seeking relief short of the six-month time limit. (*Metropolitan Service Corp. v. Casa de Palms, Ltd.* (1995) 31 Cal.App.4th 1481, 1488.) The six-month period starts with entry of the default judgment, not the default. (*Sugasawara v. Newland* (1994) 27 Cal.App.4th 294, 297.)

Mandatory relief only applies to defaults and dismissals and is not available for acts resulting in a judgment against the client such as (1) failing to oppose a dispositive motion (*English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 148-149), (2) failure to meet the burden of proof (*Generale Bank Nederland, N.V. v. Eyes of the Beholder Ltd.* (1998) 61 CA4th 1384, 1397), (3) failure to disclose an essential witness (*Gotschall v. Daley* (2002) 96 Cal.App.4th 479, 484), or (4) failure to appear at trial (*Vandermoon v. Sanwong* (2006) 142 Cal.App.4th 315, 321).

Discretionary relief is available not just from defaults, default judgments, and dismissals, but may also to any order or “other proceeding” taken against the party. (C.C.P. §473(b); *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 254.) The failure of a party to meet a procedural deadline which results in default or dismissal may be the proper subject for relief section 473 (*Lee v. Wells Fargo Bank, N.A.* (2001) 88 Cal.App.4th 1187, 1193) but not when the default or dismissal was the result of a lapse of the statute of limitations, a failure to serve a complaint in a timely manner, failure to prosecute, or failure to amend a complaint (*Pagnini v. Union Bank, N.A.* (2018) 28 Cal.App.5th 298, 303-304).

The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief....” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

When relief is granted based on an attorney affidavit of fault, sanctions of reasonable compensatory legal fees and cost to the opposing counsel or parties are mandatory. [C.C.P. §473(b).] The court may also impose sanctions against the culpable attorney of monetary sanctions up to \$1,000 to opposing parties, \$1,000 to the State Bar Client Security Fund, or “other relief as is appropriate.” (C.C.P. §473(c)(1)(A), (B) and (C).)

Summary judgments are neither defaults, nor default judgments, nor dismissals (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1417, citing *English*, supra, 94 Cal.App.4th at 133). Thus, mandatory relief is not applicable in this situation. As to discretionary relief, Defendant points to denial of such relief in the *Huh* matter. However, in that decision, the court noted that appellant waited more than three months to file a motion for relief, and the motion was filed after a notice of appeal and motion for new trial were abandoned or vacated. *Huh* at 1420-1421. Here, Plaintiff filed their motion for relief within a week of the court’s ruling on the motion for summary judgment.

As to excusable neglect, Plaintiff's declaration states that he miscalendared the motion for July 25th instead of June 25th. The court finds this mistake falls under the "typo" category referred to in *Huh*, and is distinguished from a party's unawareness of a motion at all. *Huh* at 1424.

Plaintiff's Motion for Relief GRANTED.

Summary judgment in favor of Defendant Yarana, Inc. is set aside.

Plaintiff to file opposition to the Motion for Summary Judgment, and accompanying documents, with the court within 5 days.

Motion for Summary Judgment is set for 9.10.26.

Reply to be filed by Defendant Yarana, Inc. no later than 11 days prior to the hearing date.

The court shall award reasonable compensatory legal fees and costs to Defendant Yarana, Inc., upon noticed motion, for expenses related to the motion for relief.

Trial Setting Conference set for 9.10.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503111	ALEXANDER VS MED FOR AMERICA INC. DBA JEETER	MOTION TO COMPEL PLAINTIFF ANIAYA ALEXANDER TO RESPOND TO REQUEST FOR PRODUCTION, SET ONE, BY MED FOR AMERICA INC. DBA JEETER; AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling:

No Opposition filed by Plaintiff Alexander.

Motion to Compel Plaintiff's Responses to Request for Production, Set One, GRANTED.

Plaintiff to provide verified, code-compliant responses and responsive documents, without objection, within 30 days of the date of this Order.

Sanctions in the amount of \$222.50 (\$325/hour for 0.5 hours + \$60 costs) AWARDED against Plaintiff Alexander.

Case Management Conference continued to 10.20.26.